

**CHAPTER xlv.**

An Act to empower the urban district council of Egham to make charges for the parking of vehicles on the Runnymede Pleasure Ground to confer further powers on the Council with respect to such ground to make further and better provision for the improvement health and local government of their district and for other purposes. [30th July 1948.]

WHEREAS the urban district of Egham (in this Act referred to as "the district") is under the government of the urban district council of Egham (in this Act referred to as "the Council"):

And whereas by a deed of conveyance dated the fifteenth day of August one thousand nine hundred and twenty-eight (hereinafter referred to as "the conveyance of 1928") an area of land sixteen acres or thereabouts in extent adjoining the river Thames in the district and now known as the Runnymede Pleasure Ground (hereinafter referred to as "the Runnymede Pleasure Ground") was conveyed by Thomas Alexander Mason (hereinafter referred to as "the donor") to the Council to be held by the Council upon a trust defined as follows:—

" Upon trust for the perpetual use thereof by the public
" for the purposes of exercise and recreation as an open
" space and in particular to provide a free parking
" ground for the benefit of motorists and for chars-a-banc
" and motor-cycles and subject thereto for the land to be
" used for the playing of impromptu games and for
" picnics but so that it shall not be used as an organised
" cricket ground nor shall any tennis courts be laid out
" thereon but the Council at their discretion may allow

“ organised football hockey and similar games to be
“ played thereon during the winter season only provided
“ this does not unduly interfere with the free parking
“ facilities for motor vehicles and so that the whole front-
“ age of the said land near the river bank behind the
“ towing-path shall be available for such free parking
“ throughout the year at all times during daylight ”:

And whereas the donor subsequently provided at his own expense certain conveniences and improvements for the pleasure ground including a caretaker's cottage a refreshment chalet a tea-garden a roadway a parking place for motor coaches and various seats and the pleasure ground as so improved has since been carried on and managed by the Council and has become a popular place of resort attracting a great concourse of visitors from places at a distance from Egham particularly on Saturday and Sunday:

And whereas the part of the river Thames adjoining the Runnymede Pleasure Ground has for many years been frequented for bathing purposes and the Council have found it necessary in the interests of decency and for the prevention of nuisance to occupiers of property on the northern side of the river to provide in the pleasure ground a bathing shelter and to employ attendants in connection with the bathing:

And whereas the Council have also found it necessary in the interests of the safety and comfort of persons using the Runnymede Pleasure Ground and the protection of the surface of the ground to restrict the parking of vehicles to a defined part of the pleasure ground:

And whereas the Council are already involved in considerable annual expenditure in respect of the Runnymede Pleasure Ground and will be required to incur capital expenditure for additional public conveniences for the pleasure ground:

And whereas since the Council accepted the gift of the pleasure ground from the donor on the terms of the conveyance of 1928 the pleasure ground has attracted much larger numbers of visitors and has involved much more extensive measures of control and much greater expenditure than could reasonably have been anticipated:

And whereas in the circumstances hereinbefore recited it is expedient that power should be conferred upon the Council to make charges for the parking of cars and other vehicles in the Runnymede Pleasure Ground notwithstanding the provisions of the conveyance of 1928 with respect to free parking facilities and to define the areas in the pleasure ground which may be used as parking places:

And whereas it is expedient that the other provisions with respect to the Runnymede Pleasure Ground and the areas so defined and the use and regulation thereof as in this Act contained should be enacted:

And whereas it is expedient that further and better provision should be made for the health good government and improvement of the district and that the powers of the Council in regard thereto should be enlarged as in this Act provided:

And whereas it is expedient that the provisions in regard to the finances of the Council which are contained in this Act should be made:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of sections 253 254 and 255 of the Local Government Act 1933 have been observed: 23 & 24 Geo. 5.
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1. This Act may be cited as the Egham Urban District Short title. Council Act 1948.

2. This Act is divided into Parts as follows:—

Division of
Act into Parts.

- Part I.—Preliminary.
- Part II.—Runnymede Pleasure Ground.
- Part III.—Parks &c.
- Part IV.—Streets and buildings.
- Part V.—Sewers drains &c.
- Part VI.—Infectious disease and sanitary provisions.
- Part VII.—Human food.
- Part VIII.—Lands.
- Part IX.—Financial provisions.
- Part X.—Miscellaneous.
- Part XI.—General.

PART I.

—*cont.*Incorporation
of Acts.
8 & 9 Vict.
c. 18.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act.

Interpretation.
26 Geo. 5. &
1 Edw. 8. c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ The district ” means the urban district of Egham;

“ The Council ” means the urban district council of Egham;

“ The county council ” means the county council of the administrative county of Surrey;

“ The conveyance of 1928 ” means the deed of conveyance dated the fifteenth day of August one thousand nine hundred and twenty-eight referred to in the preamble to this Act;

“ The Runnymede Pleasure Ground ” means the Runnymede Pleasure Ground of the Council comprising the land conveyed to the Council by the conveyance of 1928 with the buildings premises and conveniences situate in upon or about the same;

“ Parking place ” means a place where vehicles (including cycles and bath-chairs) or vehicles of any particular class or description may wait;

“ Public service vehicle ” has the same meaning as in the Road Traffic Acts 1930 to 1947;

“ The surveyor ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the surveyor the medical officer of health and any sanitary inspector of the Council;

“ The Minister ” means the Minister of Health;

“ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by subsequent enactments;

“ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same;

38 & 39 Vict.
c. 55.

“ Sunday school ” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

“ Child ” means a person under the age of sixteen years;

“ Food ” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938;

1 & 2 Geo. 6.
c. 56.

“ The transport commission ” means the British Transport Commission and any reference to the transport commission in relation to any functions of the transport commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive;

10 & 11 Geo. 6.
c. 49.

“ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the district;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

38 & 39 Vict.
c. 83.

“ Authorised security ” means any mortgage stock or other security which the Council are for the time being authorised to grant create or issue or upon or by means of which the Council are for the time being authorised to raise money;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under

PART I.
—cont.

any order or sanction of any government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933;

“ Undertakings of the Council ” means any undertaking of the Council as from time to time existing from which revenue is derived.

PART II.

RUNNYMEDE PLEASURE GROUND.

Power for Council to set apart areas for parking of vehicles in Runnymede Pleasure Ground and to charge for parking in such areas.

5.—(1) Notwithstanding anything contained in the conveyance of 1928 the Council may from time to time set apart as a parking place or parking places any area or areas of the Runnymede Pleasure Ground which the Council may deem to be suitable and needed for that purpose and may if they think fit make charges not exceeding such as may be authorised by byelaws made under this section for the use of any such parking place.

(2) The Council may if they think fit enclose or fence round any such parking place and in the case of any such parking place which they do not enclose or fence round the Council shall mark off or otherwise define the area thereof in such a manner as clearly to indicate to the public the extent and limits of such area.

(3) The Council may take all such steps as they may consider necessary or suitable to adapt or equip any such parking place for use.

(4) The Council may make byelaws as to the use of any such parking place or parking places and in particular (without prejudice to the generality of that power) as to the vehicles or class or classes of vehicles for which the same may be used as to the conditions on which the same may be used for the prevention of touting therein as to the charges to be paid to the Council for the use thereof and the conduct of persons and the management and control of vehicles therein. A copy of any such byelaws shall be exhibited on or near any parking place to which they relate.

(5) The Council shall so adjust the charges to be made by them under subsections (1) and (4) of this section as to meet any expenditure incurred by them in connection with the maintenance supervision and management of the Runnymede Pleasure Ground and under this section (including interest

upon any moneys borrowed for the purposes thereof and any sums paid or applied in respect of the redemption of moneys so borrowed) and the charges so made shall not be higher than is reasonably sufficient to meet such expenditure.

(6) The exercise by the Council of any of their powers under this section or any byelaw made thereunder shall not render them subject to any liability in respect of loss of or damage to any vehicle or the fittings or contents of any vehicle when entering leaving or being in the Runnymede Pleasure Ground or any parking place therein set apart under this section.

(7) While any vehicle is within a parking place set apart under this section it shall not be lawful for the driver or conductor of the vehicle or for any person employed in connection therewith to ply for hire or to accept passengers for hire and if any person acts in contravention of this subsection he shall be liable on summary conviction to a fine not exceeding forty shillings.

(8) In the case of any officer or servant of the Council whose duty or any part of whose duty it is to superintend or assist in the superintendence of a parking place set apart under this section the Council may procure such officer or servant to be sworn in as a constable for the purpose of such duty of superintendence but any such officer or servant shall not act as a constable unless in uniform or provided with a warrant and nothing in this section shall be deemed to render applicable to any such officer or servant the provisions of the Police Pensions Act 1948 or any other enactments relating to pensions gratuities and allowances in respect of police service. II & 12 Geo. 6.
c. 24.

6.—(1) A parking place set apart under the last preceding section of this Act shall not be appointed by the Council or used by any person as a station or stand or stopping place for public service vehicles. Restrictions on
parking of
vehicles in
Runnymede
Pleasure
Ground.

(2) Notwithstanding anything in the last preceding section contained no part of the Runnymede Pleasure Ground shall be deemed for the purposes of paragraph (b) of subsection (1) of section 68 of the Public Health Act 1925 to be land which may lawfully be appropriated for the purpose of use as a parking place under the powers of that section. 15 & 16 Geo. 5.
c. 71.

(3) Except in accordance with the provisions of the last preceding section of this Act the Council shall not make or permit the making of any charge for the parking or waiting of vehicles in the Runnymede Pleasure Ground or any part thereof.

(4) Except in accordance with the provisions of the last preceding section of this Act and in a parking place set apart

PART II.
—cont.

under that section no person shall park any vehicle or cause or permit the waiting of any vehicle in any part of the Runnymede Pleasure Ground but this provision shall not apply to any hand-propelled vehicle used for the conveyance of a child or invalid. If any person acts in contravention of this subsection he shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) Nothing in this section or in the last preceding section of this Act shall prejudice or affect any jurisdiction of the High Court or of the Charity Commissioners over the Runnymede Pleasure Ground.

PART III.

PARKS &C.

Boating
pools.

7.—(1) Subject to the provisions of this Act the Council may in any park recreation ground or open space belonging to them construct and maintain boating pools together with such buildings works appliances and conveniences as may be necessary or proper in connection therewith.

(2) The Council may make such reasonable charges as they may think fit for the admission to and use of any boating pools by this Act authorised to be constructed or any part thereof or any buildings works appliances or conveniences provided in connection therewith and the Council may if they think fit let any such buildings works appliances and conveniences.

53 & 54 Vict.
c. 59.

(3) The provisions of subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 shall apply as if a boating pool were a lake or piece of water in a park or pleasure ground provided by the Council.

(4) The Council may make byelaws for regulating the use of any such boating pool and works appliances and conveniences in connection therewith.

Charges for
and letting of
parks &c.
for games.
7 Edw. 7. c. 53.

8. When any portion of any park or place of public resort or recreation is set apart by the Council for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Council may permit the exclusive use by any club or other body or persons of any part of any park or place of public resort or recreation set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to such charges and conditions as the Council may think fit:

Provided that nothing in this section shall empower the Council to permit at one and the same time the exclusive use

of more than one-half of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than one-quarter of the total area of all such parks and places.

PART III.
—cont.

9.—(1) The provisions of section 68 of the Public Health Act 1925 as amended by section 16 of the Restriction of Ribbon Development Act 1935 shall extend to enable the Council from time to time to utilise as lands which may lawfully be appropriated as a parking place or as parking places for vehicles such part or parts of their parks recreation grounds or pleasure grounds (other than the Runnymede Pleasure Ground) not exceeding in the case of any park recreation ground or pleasure ground one acre or one-eighth of the area of such park recreation ground or pleasure ground (whichever may be the less) as the Minister may sanction and the provisions of the said section relating to the utilisation for parking places of land not forming part of a street shall *mutatis mutandis* apply and have effect for the purposes of this subsection.

As to use of parts of recreation grounds for parking places.
25 & 26 Geo. 5.
c. 47.

(2) The provisions of section 90 of the Road Traffic Act 1930 except subsections (1) (7) and (9) thereof shall apply to any parking place provided under this section.

20 & 21 Geo. 5.
c. 43.

10. No power conferred upon the Council by the preceding sections of this Part of this Act shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Council without an order of the High Court or of the Charity Commissioners or the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

Saving for trusts covenants &c. in conveyances and leases.

11.—(1) No person having the control of any launch (as hereinafter defined) shall pick up or set down passengers on—

Restrictions on river passenger traffic.

(a) the Runnymede Pleasure Ground;

(b) the portion of the land vested in the National Trust for Places of Historic Interest or Natural Beauty known as Runnymede which abuts upon the river Thames; or

(c) (as from the date of its acquisition by the Council) the land near Magna Carta Island bounded on the north-west by the property of the said National Trust and on the south-west and south by the road from Staines to Windsor (A.308);

without the consent of the Council.

PART III.
—cont.

(2) The Council may give any consent under this section upon such terms and conditions as they may think fit including a condition that passengers shall not be picked up or set down except at such place or places as shall be prescribed by the Council and the Council shall prescribe at least one such place on the areas referred to in subsection (1) of this section.

(3) Any person offending against the provisions of this section or contravening the terms or conditions upon which any consent is given thereunder shall be liable for every such offence to a penalty not exceeding five pounds.

(4) In this section the word “ launch ” means any vessel propelled by an internal combustion engine or by steam electricity or other mechanical power which is used for carrying passengers for fee or reward.

Byelaws with
respect to
riverside walk.

12.—(1) The Council may make byelaws with respect to the riverside walk as hereinafter defined for all or any of the following purposes (that is to say):—

- (a) The prevention of encroachments on and of the digging cutting or taking of turf sods gravel sand clay or other substances on or from the riverside walk;
- (b) The prevention of injury to or defacement or removing of seats shelters fountains conveniences fences or barriers or other things put up or maintained by the Council on the riverside walk;
- (c) The prevention of injury to or disfigurement of fences or trees on the riverside walk by the posting or painting thereon of bills placards advertisements or notices;
- (d) The regulation of hawking or toutting on the riverside walk;
- (e) The prevention of singing or playing any instrument or conducting or taking part in any entertainment exhibition or performance with a view to gaining or receiving profit or reward;
- (f) The regulation of games to be played on the riverside walk and of assemblages of persons thereon; and
- (g) Generally for the prevention or restraint of any act or thing tending to the injury or disfigurement of the riverside walk or to interfere with the use thereof by the public for the purposes of exercise and recreation.

(2) (a) No byelaw made under this section shall affect any public right of towing on the riverside walk.

(b) If and so far as a byelaw made under this section is inconsistent with a byelaw made by the Conservators of the River Thames the latter shall prevail.

PART III.
—cont.

(3) In this section the expression " riverside walk " means that part of the towing-path on the south-west side of the river Thames which lies between the eastern boundary of the Runnymede Pleasure Ground and the boundary of the district to the north-west of Bellweir Lock.

13.—(1) The Council may procure officers appointed by them for securing the observance of the provisions of all enactments relating to parks and pleasure grounds and to open spaces which are enclosed and are vested in or under the control of the Council and of the byelaws and regulations made thereunder to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

Officers may
be sworn in as
constables.

(2) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1948 or any other enactments relating to pensions gratuities and allowances in respect of police service.

PART IV.

STREETS AND BUILDINGS.

14.—(1) The Council may enter into and carry into effect agreements with persons having a legal interest in lands adjoining any street within the district (not being a trunk road) for the adjustment of the boundary of any such street and for such purpose may give land including land forming part of the street in exchange for other land For the purposes of this section the Council shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey the same in accordance with an agreement entered into in pursuance of this section.

Adjustment of
boundaries of
streets.

(2) Provided that no such agreement shall be entered into until the expiration of one month from the date on which notice of the proposals has been given by advertisement in some local newspaper circulating in the district and during such period of one month any four inhabitant householders of the district by themselves or their agent or the county council if the street is a county road may appeal to a court of summary jurisdiction against the proposals and subsections (2) to (7) of the section of this Act of which the marginal note is " As to appeals " shall apply to any such appeal as if the proposals were a decision of the Council.

PART IV.
—cont.41 & 42 Vict.
c. 76.

(3) Notwithstanding any agreement entered into under this section the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street. Provided that if the Council or any person in whom such site is vested desire that such telegraphic line should be altered the enactments of section 7 of the Telegraph Act 1878 shall thereupon apply in all respects as though the Council or the said person (as the case may be) were undertakers within the meaning of the said Act.

(4) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any lands of the Council in any case in which such consent would have been required if this Act had not been passed.

Stopping up
and diversion
of highways.10 & 11 Geo. 6.
c. 51.

15.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Council made with the consent of the local planning authority within the meaning of the Town and Country Planning Act 1947 that a highway within the district is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the district can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted:

Provided that the Council shall not make an application under this section in regard to a county road without the consent of the county council which shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by the Minister of Transport.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

(a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on the owners or

reputed owners and the occupiers of all land abutting on the highway and (when the application relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport and the county council; and

PART IV.
—cont.

19 & 20 Geo. 5.
c. 17.

- (b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the district.

(4) On the hearing of such an application the Council and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Council or by any such person as aforesaid who was or claimed to be heard by the court.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

42 & 43 Vict.
c. 49.
23 & 24 Geo. 5.
c. 38.

- (a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order;
- (b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal;
- (c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.
- (6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever:

(7) Provided that—

- (i) nothing in this section shall authorise the diversion over any land of any highway unless the written

PART IV.
—cont.

consent of the local planning authority within the meaning of the Town and Country Planning Act 1947 and of every person having a legal interest in that land is produced to and deposited with the court; and

- (ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace for the county of Surrey.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable.

(10) Any application or order under this section—

- (a) may include two or more highways which are connected with each other;
- (b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

(12) The powers of this section shall not be exerciseable with respect to any trunk road.

Power to vary
width of
carriageways
and footways.

16. The Council may if they think fit in any case vary the relative widths of the carriageway and footway or footways in any street within the district repairable by the inhabitants at large (not being a trunk road):

Provided that—

- (a) twenty-one days before commencing any work under this section which will materially reduce the width of

any carriageway or footway the Council shall send notice of the proposed work to the Minister of Transport;

PART IV.
—cont.

- (b) no alteration shall be made of the portion of a street upon a bridge carrying the street over any railway of the transport commission or the approaches thereto without the consent of the transport commission which consent shall not be unreasonably withheld and any question as to whether any such consent is unreasonably withheld shall be determined by the Minister of Transport.

17.—(1) Where any highway or portion of a highway is stopped up in pursuance of an order made under the section of this Act of which the marginal note is “Stopping up and diversion of highways” the following provisions shall unless otherwise agreed in writing between the Council and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up:—

For protection
of Postmaster-
General.

- (a) The power of the Postmaster-General to remove the line shall be exerciseable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exerciseable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Council of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Council in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Council the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part

PART IV.
—cont.

of a telegraphic line it shall vest in the Council and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of any highway has been stopped up the Council shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) If in relation to the works authorised by the section of this Act of which the marginal note is "Power to vary width of carriageways and footways" the Council require an alteration either temporarily or permanently in any telegraphic line belonging to or used by the Postmaster-General the enactments numbered (1) to (8) in section 7 of the Telegraph Act 1878 shall apply with respect to such alteration.

(4) If in consequence of the exercise or intended exercise by the Council of the powers conferred on them by the last-mentioned section of this Act the Postmaster-General considers it necessary or expedient that an alteration should be made in any telegraphic line belonging to or used by him and placed in any street affected by the exercise or intended exercise by the Council of any of the said powers the Postmaster-General may himself make such alteration in such telegraphic line as he deems necessary or expedient and the Council shall pay to the Postmaster-General all the expenses incurred by him in respect of such alteration and the amount of any loss or damage sustained by him in consequence thereof:

Provided that—

- (a) before making such alteration the Postmaster-General shall give a notice to the Council containing particulars of the telegraphic line to be altered and of the nature of the alteration he intends to make;
 - (b) the Council may within fourteen days of the receipt of the notice give to the Postmaster-General a notice objecting to the alteration on the ground that it is unnecessary or unreasonable and thereupon a difference shall be deemed to have arisen and sections 4 and 5 of the Telegraph Act 1878 shall apply accordingly and the tribunal by which the difference is determined may make such order as it thinks just as to the alteration (if any) to be made in the telegraphic line and as to the manner in which the proposed work of the Council is to be carried out.
- (5) Expressions in this section have the same meaning as in the Telegraph Act 1878.

18.—(1) If not less than three months before commencing any work involving the closing to vehicular traffic of any street or part of a street in the district either absolutely or to the extent of one-third or more of the width of the carriageway thereof the Council shall give notice in writing of their intention to execute such work to all undertakers having statutory powers to break up that street then when such work has been executed by the Council it shall not be lawful for any such undertakers within twelve months of the completion of such work to break up the street or part of a street so closed without the consent of the Council which consent shall not be unreasonably withheld and the Council may if they think fit and without prejudice to their other rights and powers attach to any consent given under this section such conditions as may be reasonable with respect to the times at which and the period within which the work of the undertakers shall be executed and completed:

PART IV.
—cont.
Restrictions on
rights of
breaking up
streets.

Provided that as respects any work executed by any undertakers which but for the provisions of this section would have been lawfully executed nothing in this section shall deprive such undertakers of any right or immunity as between themselves and any person other than the Council to which but for the said provisions such undertakers would have been entitled in respect of such work.

(2) Any dispute or difference which may arise between the Council and any undertakers under the provisions of the preceding subsection shall be referred to arbitration.

(3) Nothing in this section shall prevent any such undertakers as aforesaid from carrying out extending or enlarging works in any street in case of emergency or prevent any such undertakers from carrying out any works necessary to enable them to perform their statutory duties as such undertakers or their obligations under any contract subsisting at the date of the giving of the notice by the Council in default of which they would be liable to any penalty or damages or from making altering repairing extending enlarging or disconnecting communication pipes or service connections or laying service lines between premises and distributing mains or altering repairing extending enlarging or disconnecting any service line or from laying mains or pipes for the supply of property not previously supplied with gas or water as the case may be. In this subsection the expression "service line" has the meaning assigned thereto by the schedule to the Electric Lighting (Clauses) Act 1899.

62 & 63 Vict.
c. 19.

(4) The provisions of this section shall not apply to any street which for the time being is prescribed by an order made by the Minister of Transport under subsection (5) of section 4 of the London Traffic Act 1924.

14 & 15 Geo. 5.
c. 34.

PART IV.
—cont.
Crossings for
horses or
vehicles over
footways.

19.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from such premises the Council may either—

- (a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe; or
- (b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Council may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Council require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing from the owner or occupier.

(3) If the Council allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) subject to any condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(4) Notwithstanding the provisions of section 18 of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Council for an estimate of the cost thereof and after having obtained such estimate may deposit with the Council the amount thereof. When such deposit shall have been made the Council shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Council by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Council under this section.

(6) Before requiring the construction of any carriage-crossing across the footway of a trunk road or allowing the use of such a footway subject to any condition the Council shall obtain the consent of the Minister of Transport.

PART IV.
—cont.

20. For the protection of the British Electricity Authority the Gas Light and Coke Company the Southern Electricity Board and the South West Suburban Water Company (each of whom is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Council and the undertakers apply and have effect:—

For protection
of statutory
undertakers.

(1) In this section "apparatus" means mains cables wires pipes syphons hydrants meters and other works and apparatus belonging to the undertakers and "position" includes depth:

(2) If it shall be agreed between the Council and the undertakers or (in the case of difference) determined by arbitration that in consequence of—

(a) the giving up under the powers of the section of this Act of which the marginal note is "Adjustment of boundaries of streets" of land forming part of a street;

(b) the stopping up or diversion under an order made pursuant to the section of this Act of which the marginal note is "Stopping up and diversion of highways" of any highway or any length of a highway; or

(c) the addition to the carriageway of a street under the powers of the section of this Act of which the marginal note is "Power to vary width of carriageways and footways" of any portion of a footway or (in the case of apparatus erected laid or placed on or above the surface of the ground) the addition to the footway of a street under the powers of that section of any portion of a carriage-way; or

(d) the construction under the powers of the section of this Act of which the marginal note is "Crossings for horses or vehicles over footways" of a carriage-crossing across the footway of any street or the allowance under the powers of that section of the use as a crossing for any horse or horse-drawn or mechanically propelled vehicle of the footway of any street;

in under upon or over which any apparatus is situate it is reasonably necessary that any apparatus should be removed or diverted or that the position of any

PART IV.
—cont.

apparatus should be altered or that works (hereinafter referred to as “ protective works ”) for the protection of any apparatus should be executed the undertakers may and (if so required by the Council) shall remove or divert or alter the position of or execute protective works in respect of the apparatus according as and in such manner as may be agreed or determined by arbitration and the Council shall repay to the undertakers the amount of the costs and expenses reasonably incurred by the undertakers in or in connection with such removal diversion or alteration or the execution of such protective works (which costs and expenses are hereinafter referred to as “ the said expenses ”):

Provided that if in carrying out any such diversion or alteration of position or the execution of protective works—

(A) (i) the undertakers erect lay or place new apparatus in substitution for their existing apparatus; and

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the diversion or alteration of position of the apparatus or the execution of such protective works; or

(B) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) or of greater capacity or apparatus of improved type; or

(ii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which such greater depth is reasonably necessary in order to avoid interference with other underground apparatus works or structures;

the undertakers shall themselves bear (in the case referred to in paragraph (A) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the undertakers resulting from the consequent deferment of the date at which the existing apparatus would have required to be renewed and (in the case referred to in paragraph (B) of this proviso) such proportion of the said expenses as represents the amount by which such expenses exceed the cost which would have been incurred if

the dimensions (other than length) or the capacity of the apparatus so laid or placed had been the same as those of the original apparatus or if the apparatus had been laid or placed at the same depth as the existing apparatus:

Provided also that where the apparatus had been laid or constructed in under upon or over the part of the highway street or footway affected within the period of two years immediately preceding the giving of the relevant notice required by subsection (4) of this section and at the time of the laying or construction of that apparatus the Council had given to the undertakers notice in writing of their intention of exercising the powers necessitating the removal or diversion or alteration of position of the apparatus or the execution of protective works with a statement of the manner in which and the extent to which they intended to exercise such powers no part of the said expenses shall be repayable by the Council if the said powers are exercised by the Council in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the undertakers:

- (3) Notwithstanding the giving up under the powers of the section of this Act of which the marginal note is "Adjustment of boundaries of streets" of land forming part of a street or the stopping up or diversion under an order made pursuant to the section of this Act of which the marginal note is "Stopping up and diversion of highways" of any highway or any length of a highway in under upon or over which highway or length of a highway any apparatus is situate the undertakers shall (unless the apparatus is removed or diverted under the provisions of subsection (2) of this section or unless new apparatus has been laid in substitution therefor) continue to have the same powers and rights in respect of such apparatus as if the land in under upon or over which the same is situate had continued to be part of the street or highway:
- (4) The Council shall give to the undertakers not less than twenty-eight days' notice in writing of their intention to exercise any of the powers referred to in subsection (2) of this section with respect to any portion of a highway street or footway in under upon or over which any apparatus is situate and such notice shall be accompanied by a plan and (in the case of the addition of part of the footway to the carriageway)

PART IV.
—cont.

a section showing the nature and extent of the proposals in so far as they relate to any such portion of a highway street or footway as aforesaid:

- (5) If within twenty-eight days after the receipt from the Council of any notice under subsection (4) of this section of their intention to exercise any such powers as are referred to in that subsection the undertakers give to the Council notice in writing of their intention (otherwise than by the requirement of the Council) to remove or divert or alter the position of or to execute protective works in respect of any apparatus affected by the exercise of such powers and at the same time deliver to the Council a plan section and particulars of any such diversion or alteration of position or particulars of any such protective works (as the case may be) the Council shall not exercise the powers referred to in the notice given by them as aforesaid until—

(a) it shall have been agreed between the Council and the undertakers or settled by arbitration whether such intended removal diversion or alteration of position of apparatus or the execution of such intended protective works is reasonably necessary; and

(b) the plans sections and particulars of any diversion or alteration of position to be carried out or the particulars of any protective works to be executed have been so agreed or settled:

Provided that if the proposals contained in any notice given to the Council by the undertakers under this subsection and any plans sections or particulars delivered to the Council with such notice are not disapproved by the Council within twenty-eight days after the receipt thereof the said proposals shall be deemed for the purposes of this section to be reasonably necessary and the Council shall be deemed to have approved such plans sections or particulars:

- (6) Forthwith after the completion of any such removal or diversion or alteration of position of apparatus or of any such protective works the undertakers shall if reasonably required by the Council fill in the excavation and make good the surface of the ground to the reasonable satisfaction of the Council:
- (7) Any difference or dispute which may arise between the Council and the undertakers under this section shall be referred to arbitration.

21. For the purpose of preventing danger to pedestrians from traffic the Council may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any public baths public parks recreation grounds playing fields alleyways and passage-ways exercise the like powers of placing fences rails and posts on the sides of any footways or carriageways of such roads as under section 149 of the Public Health Act 1875 are exerciseable by them as respects roads so repairable and the Council may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

PART IV.

—cont.

Power to place fences near entrances to public baths &c.

22.—(1) In any case in which the forecourt of any premises adjoining a street within the district or any steps or projection placed in any such forecourt or any goods placed therein whether for sale or not is or are a source of danger obstruction or inconvenience to the public the Council may require the owner of the premises well and sufficiently to fence such forecourt from the street.

Fencing of forecourts.

(2) Any person who shall fail to comply with any requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

23.—(1) If the Council shall by resolution determine that any stall structure or other erection (not being an advertisement as defined in the Town and Country Planning Act 1947) on any forecourt is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice in writing require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

Provision as to forecourts.

(2) Any person neglecting or refusing to comply with the requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

24.—(1) It shall be lawful for the owner or occupier of any property with the consent in writing of the Council to construct in any pavement forming part of any street in the district any means (in this section referred to as "pavement lights") for the admission of light or air through such pavement to any room or premises situate under or adjoining the same.

As to pavement lights.

(2) In giving their consent to the construction of any pavement lights the Council may attach thereto such terms and conditions as they may think fit.

PART IV.
—cont.

(3) Any agreements entered into by the Council with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

Compensation
for injuring
lamps &c.

25. Every person who negligently breaks throws down or otherwise damages any public lamp or lamp post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or life-saving apparatus or any other property of the Council shall make full compensation to the Council for the damage done and such compensation to an amount not exceeding twenty pounds may (without prejudice to any other right or remedy of the Council) be recovered summarily as a civil debt.

Window
blinds &c.

26.—(1) Any person erecting setting up or placing any blind shade covering or awning over any footway shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Council the safety and convenience of the public.

(3) Every person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

24 & 25 Geo. 5.
c. xcvi.
1 & 2 Geo. 6.
c. xcii.

(4) Nothing in this section shall prejudice or affect the provisions of section 104 of the London Passenger Transport Act 1934 section 65 of the London Passenger Transport Act 1938 and subsection (4) of section 65 of the Transport Act 1947.

As to
hoardings
and similar
structures.

27.—(1) (a) No wall fence hoarding or other similar structure (in this section referred to as "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street shall be erected or brought forward on any land in any street—

(i) beyond any building line prescribed by the Council in respect of the land under the provisions of any Act; or

(ii) if there be no such line beyond any line which is enforceable by the Council for buildings under subsection (2) of section 140 of the Housing Act 1936; or

(iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

26 Geo. 5. &
1 Edw. 8. c. 51.

51 & 52 Vict.
c. 52.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Council may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Council shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Council given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council may at their own expense take down or remove and if required by the owner or occupier shall re-erect so as not to contravene the provisions of subsection (1) of this section any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not (a) be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date (b) apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete (c) apply to any advertisement as defined in the Town and Country Planning Act 1947 or (d) apply to any wall erected on land belonging to the transport commission so long as such land is used by the transport commission primarily for the purposes of their railway.

28.—(1) No person shall place or erect in the district any hoarding wall (not being a wall forming part of the structure of a permanent edifice) or fence at or within a distance of ten yards from the corner of any street unless he has given to the Council notice of his intention so to do accompanied by plans and particulars of the hoarding wall or fence and the Council have approved the placing or erection thereof under this section.

As to erection
of hoardings
&c. at street
corners.

PART IV.
—cont.

(2) Within one month from the receipt of such a notice from any person the Council may give him notice that they disapprove the placing or erection of the hoarding wall or fence or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the hoarding wall or fence would by obstructing the view of foot passengers or drivers of vehicles constitute a danger to the traffic in the streets upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The Council may at any time within the said month give notice that they approve the placing or erection of the hoarding wall or fence in accordance with the plans and particulars submitted to them and if within the said month the Council have not given notice under the last foregoing subsection they shall be deemed for the purpose of this section to have approved the placing or erection of the hoarding wall or fence in accordance with those plans and particulars.

(4) Where the Council have approved the placing or erection of the hoarding wall or fence it shall not be placed or erected otherwise than in accordance with the plans and particulars submitted as aforesaid or if notice has been given under subsection (2) of this section of any conditions or modifications than in accordance with those conditions and with such plans and particulars as modified by the notice.

(5) Any person who places or erects any hoarding wall or fence in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Council may remove the hoarding wall or fence so placed or erected and may recover the expense incurred by them in so doing from such person.

(6) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

(7) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925.

15 & 16 Geo. 5.
c. 68.

Further
powers as to
future line of
street.

29.—(1) The Council may at any time after prescribing the improvement line of any street in pursuance of the power conferred upon them by section 33 of the Public Health Act

1925 on giving six months' previous notice in writing to the owner require that any building or erection which or any part of which was beyond or in front of any such improvement line at the date when the same was so prescribed shall be pulled down set back or altered so that the same shall not project beyond or in front of such improvement line.

(2) The owner may and if so required by the Council shall notwithstanding any contract lease or agreement or any provision therein contained enter upon any land building or erection affected by any requirement of the Council under this section and carry out such requirement.

(3) In the event of any building or erection being pulled down set back or altered in accordance with any requirement of the Council under this section the Council shall make compensation to any owner lessee or tenant of any such building or erection for any loss or damage sustained by him in consequence of such requirement being complied with.

(4) The amount of any compensation payable under this section and any other question under this section the determination whereof is not otherwise provided for by this Act shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts but in estimating the amount of any such compensation the benefit arising from the widening or improvement of the street and accruing to the property in respect of which such compensation shall be payable shall be fairly estimated and set off against such compensation.

(5) Any person who shall fail to comply with a requirement of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

30. Section 17 of the Public Health Acts Amendment Act 1907 shall in its application to the district be read and have effect as if subsection (2) of the said section were omitted therefrom.

Amendment of
section 17 of
Public Health
Acts
Amendment
Act 1907.

31.—(1) In any street not being a highway repairable by the inhabitants at large the Council may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves defray the cost of the repairs out of the general rate fund:

Urgent repairs
of private
streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds for each one hundred yards of the length of the street.

PART IV.
—cont.

(2) The exercise by the Council of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the district relating to private street works or private improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

Planting of
trees in private
streets.

32. The Council when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Council under this section shall be deemed part of the expenses of carrying out the private street works in any such street. Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Council shall be deemed to be the undertakers.

Power to order
alteration of
chimneys.

33. It shall be lawful for a court of summary jurisdiction upon complaint by the Council in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a washhouse or outbuilding forming part of or in proximity to a house in the district is a nuisance to any of the inhabitants of the district to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding twenty pounds and any such owner as aforesaid who shall neglect or refuse to obey such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Sanitary
conveniences
for workmen.

1 Edw. 8. &
1 Geo. 6. c. 67.

34.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 or section 108 of the Factories Act 1937 applies shall where practicable and if required by the Council provide to the reasonable satisfaction of the Council and until

the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection with such work as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

35.—(1) The Council may prohibit the construction in or in connection with any house within the district of any cellar or room the floor level of which shall be lower than the ordinary level of the subsoil water on under or adjacent to the land on which such house shall be erected.

Cellars not to be constructed below subsoil water level.

(2) Any person offending against any prohibition of the Council under the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

36. Section 44 of the Public Health Act 1936 shall with the necessary modifications apply to a part of a house within the district occupied by a separate family as it applies to the whole of a house.

Closet accommodation in houses occupied by more than one family.

37.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Council a plan and section thereof and shall comply with such conditions as the Council may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon.

Restriction on erection of stands &c.

(2) Any person aggrieved by any conditions prescribed by the Council under subsection (1) of this section may appeal in accordance with the section of this Act whereof the marginal note is "As to appeals":

Provided that pending the determination of such appeal twenty or more persons shall not be admitted to such stand or structure unless the conditions prescribed by the Council have been complied with.

(3) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding forty shillings.

PART IV.
—cont.

(4) The provisions of this section shall not apply to any stand or structure erected by—

- (a) the transport commission for the accommodation of passengers and servants of the transport commission under the provisions of section 104 of the London Passenger Transport Act 1934 and subsection (4) of section 65 of the Transport Act 1947; or
- (b) a person who is the proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

(5) Nothing in this section shall apply to any stand or structure provided or erected in connection with any music or dancing entertainment boxing entertainment or wrestling entertainment as defined by the Surrey County Council Acts 1931 and 1936 or any premises in respect of which the licence of the county council is required for the performance of stage plays or cinematograph exhibitions.

(6) Nothing in this section shall render lawful the erection of any stand or structure which would not have been lawful apart from the provisions of this section.

38. The power of the Council under section 15 of the Private Street Works Act 1892 to contribute the whole or a portion of the expenses incurred by them in executing private street works with respect to any street or part of a street shall be extended so as to cover also the contribution of the whole or any portion of the amount which would otherwise be apportioned and charged under that Act in respect of the said expenses against any premises of which only a flank fronts adjoins or abuts on such street or part of a street and the amount which would otherwise so be apportioned and charged against any such premises shall be reduced by the amount of the contribution made by the Council under this section in respect of such premises.

39.—(1) In this section the expression “ private street works ” has the same meaning as in section 6 of the Private Street Works Act 1892.

(2) Notwithstanding anything contained in the Private Street Works Act 1892 where it appears to the Council that by reason of additions made otherwise than by the Council to an existing footpath bridle-path or other right of way repairable by the inhabitants at large (not being or comprising a carriageway) a new street has been formed the Council may in respect of such street carry out private street works under the provisions of the Private Street Works Act 1892 and

apportion the expenses thereof on the premises fronting adjoining or abutting on such street as if no part of the said street were so repairable.

(3) Notwithstanding anything contained in the Private Street Works Act 1892 the Council may under the provisions of that Act carry out private street works throughout the width of a street notwithstanding that part of the width consists of a highway repairable by the inhabitants at large but save in a case falling within the provisions of subsection (2) of this section the Council shall be entitled to apportion against the premises liable to be charged therewith only such part of the expenses as relates to the portion of the street which is not so repairable.

(4) For the purposes of any apportionment under subsection (3) of this section premises fronting adjoining or abutting on a street shall be deemed to front adjoin or abut on the portion of the street which is not repairable by the inhabitants at large.

40.—(1) In this section—

As to
neglected sites.

“ neglected site ” means the site of a demolished building in the district which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood;

“ owner ” in relation to a neglected site means a person other than a mortgagee not in possession who is for the time being entitled to dispose of the fee simple of the neglected site whether in possession or in reversion and includes also a person holding or entitled to the rents and profits of the neglected site under a lease or agreement the unexpired term whereof exceeds three years.

(2) A court of summary jurisdiction on complaint by the Council may order the owner of any neglected site to remove any rubbish resulting from the demolition of the building within a reasonable time to be fixed by the order.

(3) If the order is not obeyed within the time thereby prescribed the Council at any time after the expiration of such time may enter upon the neglected site and execute the order.

(4) All expenses incurred by the Council under subsection (3) of this section in relation to a neglected site may be recovered by the Council from the owner of the neglected site.

41.—(1) Every undertaking or agreement under seal expressed to be made in pursuance of this section and given by or to the Council to or by the owner of any legal estate in land or property on the passing of plans or otherwise in connection

Undertakings
to bind
successive
owners.

PART IV.
—cont.

with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Council and such owner or his successor in title or person claiming through or under him shall be entitled to require from the Council a copy of such undertaking or agreement.

(2) Any such undertaking or agreement of such owner shall be treated as a local land charge for the purposes of the Land
15 & 16 Geo. 5. Charges Act 1925.
c. 22.

(3) Any such undertaking or agreement of such owner shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

PART V.

SEWERS DRAINS &C.

Separate
sewers for
sewage and
surface water.

42. For the purpose of facilitating the disposal of surface water and sewage the powers of the Council under section 157 of the Public Health Act 1875 shall extend to the making of byelaws requiring any person constructing a new street in the district to provide separate sewers for the reception of surface water and of sewage respectively.

Water from
buildings &c.
to be conveyed
to sewers.

43.—(1) The powers of the Council under section 21 of the Public Health Act 1925 shall extend to authorise them to require the execution and maintenance of such works as may be necessary to convey surface water from premises to which that section applies to some drain sewer or watercourse or the disposal of such surface water in such other manner as the Council may require.

(2) It shall be the duty of all owners of land or premises to provide lay and keep in repair such gutters drains channels and other works as may be requisite for complying with section 21 of the Public Health Act 1925 as amended by this section and for the purpose of laying and repairing the same the owner of any land or premises may take up so much of any street as may be requisite and such gutters drains channels and other works shall be laid and thereafter kept in good repair and condition and the street shall be reinstated under the direction of the surveyor and all damage occasioned to the street shall be made good by such owner to the satisfaction of the surveyor.

(3) In the event of default on the part of the owner of any land or premises to comply with the provisions of subsection (2) of this section the Council may execute any necessary work and recover the cost of so doing from such owner.

PART V.
—cont.

44. Section 81 of the Public Health Act 1936 shall extend to empower the Council to make byelaws for preventing slop water from any house or premises from being discharged or thrown or suffered to be discharged or thrown or to pass into any street gully in the district. Byelaws as to throwing slop water into street gullies.

45. Section 24 of the Public Health Act 1936 shall within the district have effect as if the following were substituted for the proviso to subsection (1) of that section:— Recovery of cost of maintaining sewers.

“ Provided that unless in the opinion of the medical officer of health or any sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall be given to the owners of any premises known by the local authority to be served by the length of sewer in question not less than seven days before the work is commenced and the local authority shall consider any representations as to the need for and reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice.”

46. The powers of section 48 of the Public Health Act 1936 may be exercised in pursuance of any general or special directions given by the Council in any case where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance or that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water. Further power to examine and test drains &c. believed to be defective.

47.—(1) Where the Council resolve to construct a sewer in a street or part of a street within the district repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Council increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the succeeding provisions of this section the expenses incurred by the Council in constructing the sewer so far as they do not exceed the sum authorised by this section shall be apportioned by the Council on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative. Apportionment to frontagers of expenses of sewer constructed under public highway.

PART V.
—cont.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published in a local newspaper circulating in the district but shall become operative as from the date of such publication. Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Council and the owner of the land.

(4) The sum apportionable under this section shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the district multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

(5) As soon as the apportionment has been made the Council shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(6) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(7) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date when the resolution became operative the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

For the purposes of this subsection—

(a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;

(b) the following alterations and extensions shall be deemed to be the erection of a new building (that is to say):—

(i) the re-erection wholly or partially of any building of which an outer wall is pulled down (otherwise than in consequence of fire or other accident) to such a distance that the part of that wall remaining (if any) is less than half the previous height of the building (the height being measured from the ground level to the highest point of the building);

(ii) the conversion into a house of any building not originally constructed for human habitation;

(iii) the conversion of any premises into a factory workshop shop or place of public resort; and

(iv) any extension by reason whereof the area occupied by the site of a building will (with any previous extension made since the date when the resolution became operative) be increased by an area equal to more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date.

(8) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(9) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(10) Where such a resolution as is mentioned in this section has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

(11) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Council or on appeal a court of summary jurisdiction may remit such part of that sum as they may think

PART V.
—cont.

just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(12) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Council from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

As to evasion
by owners of
sewerage
expenses.

48. If on a complaint by the Council to a court of summary jurisdiction it is proved to the satisfaction of the court—

- (i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and
- (ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of section 65 (Apportionment to frontagers of expenses of construction of sewer before land became a street) of the Surrey County Council Act 1936 or as the case may be of the last preceding section of this Act; and
- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under either of the said sections;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the said section of the Surrey County Council Act 1936 or the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under either of the said sections may be recovered and is charged on the premises under the said section of the Surrey County Council Act 1936 and the said last preceding section of this Act.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

49.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to be furnished in case of notifiable disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

50.—(1) As from the commencement of this section any parent or other person having the care or charge of a child attending at a school in the district who is aware of or has reason to suspect the occurrence of any disease to which this section applies in any person residing with him or is himself suffering from such a disease and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

Parents &c. to notify certain diseases.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(3) For the purpose of this section the expression "school" shall include a Sunday school.

51.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

Restrictions on attendance at schools and places of assembly.

(a) who is or has been attending any school or any part thereof which for the time being is closed by order of the local education authority or of any committee or

PART VI.
—cont.

body to whom the powers of that authority are delegated with the view of preventing the spread of a disease to which this section applies; or

- (b) who is suffering from a disease to which this section applies; or
- (c) who with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(3) In this section the expression " day school " means a school (not being a school maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

Power to close
schools and
exclude
children from
entertain-
ments.

52.—(1) If the Council or any committee of the Council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases as defined by section 343 of the Public Health Act 1936 and any other disease which the Minister by regulation made under section 143 of the Public Health Act 1936 declares to be a notifiable disease for the purpose of this section.

(4) In this section the expression " day school " means a school (not being a school maintained by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

53. If any person at the request of the Council or the medical officer stop his employment for the purpose of preventing the spread of a notifiable disease the Council may make compensation to him for any loss occasioned by reason of such stoppage.

Compensation to persons for ceasing employment to prevent spread of disease.

54.—(1) If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

Entry into premises in case of disease.

Provided that the medical officer shall not under the powers of this section—

(a) enter any premises except between the hours of seven in the morning and ten in the evening; or

(b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

(2) Any person who obstructs the medical officer in the exercise of his power under this section shall in addition to any other punishment to which he may be subject be liable to a penalty not exceeding five pounds.

55. Section 82 of the Public Health Act 1936 in its application to the district shall be extended so as to empower the Council to make byelaws prescribing the times and the days of the week during which trade refuse may be set fire to or burned in yards and gardens.

Byelaws as to burning of refuse.

56.—(1) Section 81 of the Public Health Act 1936 shall extend to empower the Council to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

Byelaws as to tipping refuse.

PART VI.
—cont.

(2) The Council may by any byelaws made by them in pursuance of this section impose on offenders against the same such penalties as they think fit not exceeding the sum of fifty pounds for each offence and in the case of a continuing offence a daily penalty not exceeding ten pounds.

(3) Without prejudice to any other remedy available the Council if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Public Health Act 1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 inclusive and section 100 of that Act shall apply accordingly.

(4) Provided that a person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 of the Public Health Act 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a further penalty under the byelaws for the continuance of his offence after conviction and to a penalty under section 95 of the Public Health Act 1936 (as so applied) for failing to comply with an order or contravening an order.

(5) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by the transport commission for the purpose of constructing widening or maintaining any railway works.

Further
provisions as
to working-
class houses.

57.—(1) For the purposes of Part II of the Housing Act 1936 any house which is occupied or is of a type suitable for occupation by persons of the working classes the person having control of which fails to keep such house sufficiently repaired and painted and the interior surface of the walls thereof sufficiently papered or painted with oil-bound water paint of a suitable quality so as to prevent the dilapidation thereof and so as to secure reasonable amenities for the occupier or occupiers shall be deemed to be a house not in all respects fit for human habitation and the powers of the Council under the said Part II shall apply in respect of such house accordingly.

(2) On an appeal to the county court by the person having control of a house upon whom the Council have served notice under section 9 of the Housing Act 1936 in consequence of his failure to comply with the provisions of this section the county court judge shall take into consideration—

(a) if the person upon whom the notice is served is a lessee or agent for a lessee the length of the unexpired period of the lease;

- (b) the period for which the house is likely to continue occupied;
- (c) the expenditure incurred by the person having control of the house or the owner during the last preceding three years upon the house;
- (d) whether the condition of the house is or is not due to the wilful default or neglect of the tenant.

58.—(1) As from the commencement of this section every person who shall within the district carry on the trade or business of a hairdresser or barber shall register his name and place of abode and also the premises in which such trade or business is carried on in a book to be kept at the offices of the Council for the purpose. Registration of hairdressers and barbers and premises.

(2) The Council may make byelaws for the purpose of securing—

- (a) the cleanliness of any premises registered under this section and of the instruments towels materials and equipment used therein; and
- (b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(3) The person registered shall keep a copy of the byelaws made by the Council under this section displayed in the registered premises.

(4) Any officer of the Council or other person duly authorised in writing in that behalf by the Council and if so required exhibiting his authority shall at all reasonable times be afforded by the person registered full and free power of entry into the registered premises for the purpose of inspecting such registered premises and examining whether there is any contravention of the provisions of this section or any byelaw made thereunder and any such officer or person as aforesaid shall have the like power of entry into any premises in the district in which the Council may have reasonable cause to suppose that the said trade or business is being carried on:

Provided that the powers conferred by this subsection of entering premises for the purpose of examining whether there is any contravention of any byelaw made for the purposes mentioned in paragraph (b) of subsection (2) of this section shall not be exercised by any officer except the medical officer or the sanitary inspector.

(5) Any person carrying on such trade or business as aforesaid whose name place of abode and premises in which such trade or business is carried on have not been registered in accordance with subsection (1) of this section or whose registration has been cancelled or suspended as hereinafter

PART VI.
—cont.

provided or who contravenes any of the provisions of this section or of any byelaw made thereunder shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound and a court of summary jurisdiction may (in lieu of or in addition to imposing a penalty) order the suspension or cancellation of the registration.

(6) As from the commencement of this section section 125 (Byelaws as to hairdressers' and barbers' premises) of the Surrey County Council Act 1936 shall cease to be in force in the district.

Notice of
slaughter of
animal unfit
for food.

59.—(1) As from the commencement of this section where any person being the owner of any bull ox cow heifer calf sheep lamb goat or pig which is emaciated or diseased and unfit for food is about to slaughter the same or about to cause the same to be slaughtered he shall give not less than twelve hours' previous notice to an authorised officer of such intention and shall on the application of an authorised officer within six weeks from the date of such slaughter furnish such information within his knowledge as such authorised officer may reasonably require for the purpose of enabling inquiries to be made to trace the disposition of the carcasses or any part thereof.

(2) Any person failing to give such notice or refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding ten pounds.

(3) This section shall not apply to the slaughter of any animal to which the Public Health (Meat) Regulations 1924 apply.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

1 Edw. 8. &
1 Geo. 6. c. 70.

(5) In this section the expression "authorised officer" means (a) the medical officer (b) the sanitary inspector or (c) any other officer of the Council who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act.

As to defective
drains &c.

60.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain water-closet or soil-pipe is stopped up the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Council may

carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier.

PART VI,
—cont.

(2) Upon any proceedings under this section the court may inquire whether any requirement contained in any notice given under this section or work done by the Council was reasonable and whether the expenses incurred by the Council in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable in the circumstances of the case.

61.—(1) (a) If the owner of any house or premises occupied therewith within the district represents to the Council that the occupier of such house or premises habitually maintains the same in a filthy condition any officer of the Council duly authorised in that behalf may enter upon such house or premises and inspect the same and if the Council or a committee of the Council are satisfied of the truth of the representation of such owner the occupier shall be liable on the complaint of the medical officer to a court of summary jurisdiction to be ordered to vacate the house or premises for such time to be specified in the order as may be reasonably required for remedying the condition of the house or premises by cleansing disinfecting or whitewashing or taking such other steps as may be necessary for such purpose.

Vacation
of filthy
premises
during
cleansing.

(b) Any order made under this section may be enforced in the manner provided by section 34 of the Summary Jurisdiction Act 1879.

(2) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed not to apply to a house or premises by reason only of the fact that such house or premises have been vacated in compliance with an order made under this section.

(3) Any expenses incurred by the Council under this section and not paid by the occupier shall be recoverable from the owner of the house or premises.

62. The Council may make byelaws for securing the proper ventilation and lighting of any existing stable used for the accommodation of horses (whether the same is used as such at the passing of this Act or not) and for the prevention of insanitary conditions (a) in or about or arising out of any such stable or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

Byelaws as to
stables.

PART VI.

—cont.

Prohibition
on sale of
verminous
furniture
or clothing.

63.—(1) No dealer shall sell or expose for sale any second-hand furniture mattress bed-linen clothing or similar articles if the same are to his knowledge infested with bed bugs lice or fleas or if by taking reasonable precautions he could have known the same to be so infested.

(2) Any dealer offending against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) In this section the expression "dealer" means any person (other than a pawnbroker) who trades in secondhand furniture mattresses bed-linen clothing or similar articles for reward.

Extension of
section 268 of
Public Health
Act 1936 to
houseboats.

64. The provisions of section 268 of the Public Health Act 1936 except subsection (4) of that section shall extend and apply to any houseboat which is used for human habitation on any navigable river in the district in such a way as to be a nuisance or injurious to health or to cause a nuisance or give rise to conditions injurious to health.

PART VII.

HUMAN FOOD.

Registration of
hawkers
of food.

65.—(1) As from the commencement of this section the following provisions shall have effect in the district:—

(a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Council;

(b) No premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) (a) The Council may refuse to register any person or premises under this section or (after giving one month's notice in writing to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied—

- (i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food;
- (ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Council shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Council should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Council refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction (under the section of this Act of which the marginal note is "As to appeals") against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Council appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the district in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle.

(6) The Council shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II of that Act or under regulations made thereunder.

PART VII.
—cont.

(8) The provisions of this section shall not apply to any premises used as a cinematograph theatre or to any person in respect of the sale or offer or exposure for sale of any food in any such premises.

(9) In this section the expression " food " does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

Power to
prohibit
persons in
infectious state
of tuberculosis
from selling
&c. food.

66.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed within the district in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Council may request such person to stop his employment and on such request being made the Council may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

(2) If any such person shall fail to comply with such request the Council may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Council to such person.

(3) If any such person fail to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

Precautions
against
contamination
of food.

67.—(1) The occupier of any shop cellar passage or other space forming the whole or part of a building being a shop cellar passage or other space in which food (other than (a) milk (b) meat to which the Public Health (Meat) Regulations 1924 apply and (c) food which is packed in tins or other strongly constructed and impervious cases) is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall take all such steps as may be reasonably necessary to guard against the contamination of such food by animals and insects and shall cause such food to be so placed as to prevent mud filth or other contaminating substance being splashed or blown thereon.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

PART VIII.

LANDS.

68.—(1) The Council notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable that the Council should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the district. Further powers for acquisition of lands.

(2) When any lands purchased or acquired or taken on lease by the Council under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Council and pending such appropriation all expenses incurred by the Council under this section shall be payable out of the general rate fund and general rate.

69.—(1) Notwithstanding anything in the Lands Clauses Acts to the contrary the Council may retain and hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and on such terms and conditions as they may think fit and in consideration either of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the district (other than the Housing Act 1936 or any Act repealed by that Act) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange: Retention and disposal of lands.

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interest therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained:

Provided also that nothing in this section shall be taken to dispense with the consent of any government department to any sale lease appropriation or other disposition of any lands of the Council (other than lands acquired under any local Act applying to the Council) in any case in which such consent would have been required if this Act had not been passed.

PART VIII.
—cont.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in the like manner and to the same extent as if this Act had not been passed.

Reservation of
easements &c.

70. The Council on selling any lands may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Powers with
reference to
leases of lands.

71.—(1) The Council may accept a surrender of any lease or letting granted by them of lands acquired under the powers of this Act or any local Act for the time being in force within the district and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of the lands as aforesaid.

(2) The Council may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Council of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Council in their discretion.

(3) Provided that any lease granted by the Council in pursuance of this section shall be subject to similar conditions and limitations to those prescribed in the section of this Act of which the marginal note is "Retention and disposal of lands" with respect to leases granted thereunder.

Power to
develop lands.

72.—(1) The Council may (with the consent of the Minister) lay out and develop any lands at any time belonging to the Council and not required for the purposes for which

they were acquired and may erect and maintain houses shops offices warehouses and any other buildings and construct sewer drain pave flag channel and kerb streets roads and ways on any such lands. PART VIII.
—cont.

(2) The Council may use or dispose of the building or other materials of any houses or premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

73.—(1) The Council may with the consent of the Minister purchase or take on lease houses and other buildings for persons employed by them for the purposes of their several undertakings and may erect fit up maintain and let any such houses and buildings upon any lands for the time being belonging to the Council and (subject to the terms of the lease) upon any lands for the time being leased to the Council for those purposes. Houses for
persons in
employment
of Council.

(2) Nothing contained in this section shall empower the Council to create or permit a nuisance.

74.—(1) The Council may (so far as they consider necessary) apply subject to the approval of the Minister any capital moneys received by them on the resale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of other lands but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister. Proceeds of
sale of surplus
lands.

(2) Any capital moneys received by the Council on the resale or exchange of or by leasing any lands acquired under any Act other than this Act shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister.

75. The powers of the Council of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Council by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of this Act. Purchase of
lands for
exchange.

PART VIII.

—cont.

Power to
reinstate
owners of
property.

76. The Council may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired by the Council under the provisions of any general or local enactment from time to time in force in the district with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Council may pay or receive money for equality of exchange.

PART IX.

FINANCIAL PROVISIONS.

Power to
borrow.

77.—(1) The Council may from time to time independently of any other borrowing power borrow at interest the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Council may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

As to exercise
of borrowing
powers.
8 & 9 Geo. 6.
c. 18.

78. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Receipts in
case of minors.

79. If any money is payable to a holder of any authorised security being a minor the receipt of his guardian shall be a sufficient discharge to the Council.

Consolidated
loans fund.

80.—(1) Notwithstanding anything contained in any other Act or Order on and after the thirty-first day of March one thousand nine hundred and forty-eight the Council may (if they think fit) establish a fund to be called " the consolidated loans fund " to which shall be paid—

(a) all moneys borrowed by the Council by the issue of authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

(b) all moneys of a capital nature received by the Council whether from the sale of capital assets or otherwise except such as are applied by the Council with due authority to another capital purpose; and

- (c) the appropriate sums provided in each year out of other funds of the Council to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Council as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Council—

- (a) in the redemption of authorised securities the purchase of stock for extinction or the repayment of any moneys borrowed by the Council; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Council:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet interest charges and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of the said sums and their application.

(4) The Council may pay into the consolidated loans fund any moneys forming part of any reserve capital reserve renewals repairs depreciation contingency or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Council within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and
- (b) There shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time

PART IX.
—cont.

being not repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the average rate of interest payable by the Council on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid (subject in the case of any of the said funds to any prescribed limit on the amount thereof) shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Council to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Council except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may be altered amended or revoked by a scheme made in like manner as the original scheme.

Capital
reserve fund.

81.—(1) The Council may establish a fund to be called “the capital reserve fund” for the purpose of defraying any expenditure to which capital is properly applicable (other than expenditure in connection with any undertaking of the Council as from time to time existing from which revenue is derived) to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating in the accounts of the Council such sums out of the general rate fund as the Council may from time to time deem expedient Provided that—

(a) except as provided by subsection (2) (b) of this section any sum or sums so appropriated or paid to the capital reserve fund from the general rate fund shall not exceed in any financial year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act 1925;

(b) appropriations to and payments into the capital reserve fund shall cease to be made whenever the said fund amounts to the sum of twenty thousand pounds but if the fund is at any time reduced below the sum of twenty thousand pounds the Council may recommence and continue the appropriations and payments until the fund be restored to the sum of twenty thousand pounds.

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

PART IX.
—cont.

(b) Any income arising from the investment or use of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

82.—(1) The Council may if they think fit in any year apply from the general rate fund or from the proceeds of the general rate to a fund to be called “ the renewal and repairs fund ” any sum not exceeding the equivalent of a rate of one penny in the pound calculated according to the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925. Renewal and repairs fund.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed ten thousand pounds.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for—

- (a) the provision maintenance and renewal of horses carts mechanically propelled vehicles stables depots boilers equipment and apparatus in connection therewith; and
- (b) the maintenance and repair of paths and apparatus in public walks and pleasure grounds and of buildings; and
- (c) the maintenance and repair of buildings (not being buildings in respect of which the Council are required by the Housing Act 1936 to keep a housing repairs account);

which are not comprised in the undertakings of the Council as from time to time existing from which revenue is derived and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

(4) (a) Pending the application of the renewal and repairs fund to the purposes authorised by subsection (3) of this section the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

PART IX.
—cont.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

As to
operation of
section 11 of
Rating and
Valuation Act
1925.

83. The Council may at any time by resolution determine with respect to any hereditament for the time being belonging to them the rent of which is payable or is collected at intervals of less than a quarter of a year to do any of the things which owners may do by agreement with the rating authority under subsection (2) of section 11 of the Rating and Valuation Act 1925 with the like conditions and consequences (other than the condition as to agreement in writing with the rating authority) as are applicable to owners under that section.

Recovery of
rates from
certain owners.

84.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Council so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Council from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

The remedy of the Council under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditament to which subsection (1) of section 11 of the Rating and Valuation Act, 1925 applies by virtue of a resolution of the Council.

Recovery of
rate from
persons
removing.

85. If a justice is satisfied on complaint by any officer of the Council duly authorised that any person is quitting or about to quit any premises in the district and has failed to pay on demand any general rate which may be due from him and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the

defaulter to meet the claim of the Council and to detain them until the complaint is determined upon the return of the summons.

PART IX.
—cont.

86. For the purposes of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the district shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

As to recovery of rates from tenants and lodgers.

87. The Council may pay out of the general rate fund and general rate the reasonable expenses of the Council in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the district.

Expenses of public entertainment &c.

88.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner) of the Council to whom or to whose legal personal representative a sum not exceeding one hundred pounds is due from the Council on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation or other fund with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Council within such time (not being less than one month after his death) as the Council may in all the circumstances think reasonable then at the expiration of that time the Council may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in a due course of administration:

As to payments due to deceased employees.

15 & 16 Geo. 5
c. 23.

16 & 17 Geo. 5
c. 60.

Provided that—

(a) the Council may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Council shall deem it reasonable to allow having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

9 & 10 Geo. 6
c. 67.

(b) if the Council receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not pay such sum or the balance

PART IX.
—cont.

thereof in their hands to any person other than to the legal personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) The Council before paying or distributing any moneys under this section to or among any person or persons other than the legal personal representative of the deceased employee shall require either—

- (a) a statutory declaration by the person or one of the persons to whom the Council may pay and propose to pay such sum or any part thereof in accordance with the provisions of subsection (1) of this section to the effect that the total net estate of the deceased employee (including such sum but after the deduction of debts and funeral expenses) does not exceed one hundred pounds; or
- (b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

PART X.

MISCELLANEOUS.

As to
maintenance
of cemeteries
&c.

89.—(a) The Council may in connection with the maintenance of any cemetery provided under the Public Health Acts or any burial ground provided under the Burial Acts 1852 to 1906 alter repair straighten or maintain any tombstone or monument and put in order and maintain any grave space therein.

(b) Before the Council exercise any of the powers of this section they shall publish once at least in each of two successive weeks in one or more newspapers circulating in the district notice of their intention so to do together with a statement of the works to be carried out and such notice shall also state that any person desiring to object to the carrying out of any such works shall give notice in writing to the Council of his objection and the grounds thereof before the date stated in the notice (which date shall not be earlier than ten days after the last publication of the notice) If any objection shall be so given to the Council and not withdrawn the works to which the objection relates shall not be carried out without the consent of the Secretary of State.

90.—(1) Subsection (3) of section 2 of the Public Health (Interments) Act 1879 shall be extended to enable the Council to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts or in a burial ground provided under the Burial Acts 1852 to 1906.

PART X.
—cont.
Extension of
section 2 (3) of
Public Health
(Interments)
Act 1879.
42 & 43 Vict.
c. 31.

(2) Any such sum unless applied in any other manner duly authorised shall be invested in statutory securities and the interest thereon applied in maintaining the grave or grave space or monument in such manner as the Council think fit.

(3) Any such capital sum and the interest thereon shall be shown separately in the accounts of the Council relating to their cemetery or burial ground but the said interest shall be paid into the fund to which receipts derived from the cemetery are paid.

91.—(1) The Council may erect and maintain on any open space or public place on or adjoining any highway in the district such weighbridges or weighing machines and offices in connection therewith as they may consider necessary or desirable for the use of the public.

Power to erect
weighbridges.

(2) The Council may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing machine.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing machines erected by the Council under the provisions of this section.

(4) The Council shall not—

(a) place a weighbridge on any part of a trunk road without the consent of the Minister of Transport;

(b) erect or allow the use of a weighbridge weighing machine or office so as to obstruct the access to or exit from any station or depot of the transport commission;

(c) exercise the powers of this section so as to cause damage to or obstruct the access to any mains cables wires pipes hydrants meters and other works and apparatus belonging to the Gas Light and Coke Company or the South West Suburban Water Company.

92.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

Silencers for
internal
combustion
engines.

PART X.
—cont.

(2) The Council shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Council if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to the transport commission and used by them for the purposes of their railway.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice in writing from the Council to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Noise
nuisance.

93.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Public Health Act 1936:

Provided that no complaint shall be made to a justice under section 99 of the said Act unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance complained of.

(2) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case:

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means within the meaning of the said Act of preventing or mitigating it have been adopted.

(3) Nothing in this section shall apply to a railway operated under statutory powers.

(4) Nothing in this section shall affect the power of the county council to make byelaws under section 249 of the Local Government Act 1933.

Shelters &c.
for passengers.

94.—(1) The Council may erect and maintain on any street in the district at suitable stopping places on the routes of public service vehicles or on lands belonging to them shelters and other accommodation for intending passengers on such vehicles and rails for the regulation of queues of persons intending to enter such vehicles.

(2) The Council shall not in pursuance of this section erect any shelter accommodation or rail—

- (a) so as to obstruct the access to or exit from any station or depot of the transport commission; or
- (b) in any street or road belonging to or repairable by the transport commission; or
- (c) on any bridge carrying any street or road over any railway of the transport commission (other than Longcross Bridge);

except with the consent of the transport commission but such consent shall not be unreasonably withheld and any question as to whether any such consent has been unreasonably withheld shall be determined by the Minister of Transport.

(3) The Council shall not in pursuance of this section erect any shelter accommodation or rail on any part of any trunk road without the consent of the Minister of Transport provided that if in any case the Minister of Transport withholds his consent and the Council give notice in writing to the said Minister that they are aggrieved the matter shall be referred to arbitration.

(4) The Council shall not in pursuance of this section erect any shelter accommodation or rail on any part of a highway which is not vested in the Council (not being a trunk road) without the consent of the highway authority but such consent shall not be unreasonably withheld and may be given subject to such reasonable terms and conditions as such highway authority may think fit. Any question which may arise as to whether any such consent has been unreasonably withheld or whether any such terms or conditions are unreasonable shall be determined by the Minister of Transport.

(5) The Council may make byelaws for the regulation use and management of any such shelter accommodation and rails.

(6) The Council may enter into and carry into effect agreements with any person for and in relation to the erection maintenance and use of any such shelter accommodation and rails and as to the contributions to be made by such person towards the cost of the provision and maintenance thereof.

95.—(1) For the purpose of preventing or reducing loss of Flood life and property resulting from and alleviating distress caused precautions. by the flooding of lands and buildings in the district the Council may provide equip and maintain or arrange for the provision equipment and maintenance of boats boat-houses vehicles garages drying-rooms store-rooms hostels and other premises and may employ and pay such number of persons as they may think fit for the purpose.

PART X.
—cont.

(2) The Council may utilise any appliances premises and accommodation provided under subsection (1) of this section for the rescue reception care and temporary accommodation of persons or property affected or likely to be affected by the flooding of lands or buildings in the portion of the district which lies near the river Thames and may if they think fit make and recover charges for the use of such appliances premises and accommodation.

Power to
grant
allowances or
gratuities in
certain cases.

96.—(1) The Council may if they think fit grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment:

Provided that this section shall not apply—

Edw. 8. &
Geo. 6. c. 68.

(a) in the case of a widow to whom a pension is granted in pursuance of section 9 of the Local Government Superannuation Act 1937; or

15 & 16 Geo. 5.
c. 84.
& 10 Geo. 6.
c. 62.

(b) in the case of a widow or dependant entitled in consequence of the death of such employee to compensation under the Workmen's Compensation Act 1925 or to death benefit under the National Insurance (Industrial Injuries) Act 1946.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

Prizes for
garden
competitions.

97. The Council may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sums as they may from time to time think fit not exceeding in any one year the sum of fifty pounds.

For protection
of county
council.

98. Unless otherwise agreed in writing between the Council and the county council and subject to such conditions as the county council may determine nothing in the sections of this Act of which the marginal notes are—

“ Adjustment of boundaries of streets ”;

“ Power to vary width of carriageways and footways ”;

“ Restrictions on rights of breaking up streets ”;

“ Crossings for horses or vehicles over footways ”;

“ As to pavement lights ”;

“ As to erection of hoardings &c. at street corners ”;

“ Water from buildings &c. to be conveyed to sewers ”;
“ Power to erect weighbridges ”;

PART X.
—cont.

shall apply to any county road in respect of which the functions of maintenance and repair are for the time being vested in or exerciseable by the county council.

PART XI.

GENERAL.

99. Section 298 of the Public Health Act 1936 shall apply to offences created by or under this Act as if they were offences created by or under that Act. Restriction on right to prosecute.

100.—(1) Any person aggrieved by any requirement refusal or other decision of the Council or of any officer thereof under the section of this Act of which the marginal note is “ Restrictions on river passenger traffic ” or under Part IV (Streets and buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) or Part VII (Human food) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction. As to appeals.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Council or a committee of the Council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

PART XI.
—cont.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

- (a) no proceedings in respect of any failure to execute the work or take the action shall be taken;
- (b) the Council shall not execute such work or take such action; and
- (c) subject to the proviso to subsection (2) of the section of this Act whereof the marginal note is "Restriction on erection of stands &c." any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Council effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

Byelaws.

101. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be—

- (a) in the case of byelaws made under the sections of this Act of which the marginal notes are "Power for Council to set apart areas for parking of vehicles in Runnymede Pleasure Ground and to charge for parking in such areas" "Boating pools" "Byelaws with respect to riverside walk" "Shelters &c. for passengers" the Secretary of State;
- (b) in all other cases the Minister.

Compensation
how to be
determined.

102. When any compensation costs damages or expenses is or are by this Act or by any local Act or Order for the time being in force in the district directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Public Health Act 1936.

103. Whenever the Council the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Council or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses payable by the Council in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

PART XI.

—cont.

In executing works for owner Council liable for negligence only.

104. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

105. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages and charges to be settled by court.

106. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Breach of conditions of consent of Council.

107. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any local Act or Order for the time being in force applying to the Council as if the same were re-enacted therein.

Application of section 265 of Public Health Act 1875.

PART XI.
—cont.
Inquiries.

108. The Minister and the Minister of Transport may hold such inquiries as they consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

Application of
provisions of
Public Health
Act 1936.

109.—(1) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
- Section 283 (Notices to be in writing; forms of notices &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 286 (Proof of resolutions &c.);
- Section 293 (Recovery of expenses &c.);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative).

(2) The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable to Part IV (Streets and buildings) Part V (Sewers drains &c.) Part VI (Infectious disease and sanitary provisions) and Part VII (Human food) of this Act (that is to say):—

- Section 277 (Power of councils to require information as to ownership of premises);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 295 (Power of local authority to grant charging orders);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925).

110.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Council of which date public notice shall be given by the Council by advertisement in one or more local newspapers circulating in the district. Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the sections of this Act of which the marginal notes are—

“ Parents &c. to notify certain diseases ”;

“ Restrictions on attendance at schools and places of assembly ”;

“ Registration of hairdressers and barbers and premises ”;

“ Notice of slaughter of animal unfit for food ”; and

“ Registration of hawkers of food ”.

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision came into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) had made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is “ As to appeals.”

111. Where under this Act any dispute or difference is to be referred to arbitration other than a dispute or difference to which the provisions of the Lands Clauses Acts apply then

Application of
Arbitration
Acts 1889
to 1934.

PART XI.
—cont.

unless other provision is made the reference shall be to a single arbitrator agreed upon between the parties to the dispute or difference or in default of such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Saving for
Conservators
of River
Thames.
20 & 21 Geo. 5.
c. 44.
22 & 23 Geo. 5.
c. xxxvii.

112. Nothing in or done under the sections of this Act of which the marginal notes are respectively " Restrictions on river passenger traffic " " Byelaws with respect to riverside walk " and " Extension of section 268 of Public Health Act 1936 to houseboats " shall affect any right power authority jurisdiction or privilege of the Conservators of the River Thames under the Land Drainage Act 1930 or the Thames Conservancy Act 1932.

Saving for
town and
country
planning.

113. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Crown
rights.

114. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those commissioners on behalf of His Majesty first had and obtained for that purpose.

Costs of Act.

115. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council in the first instance out of the general rate fund and general rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose.

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